

Overtime: your rights

1. Overview

If you have normal working hours, overtime usually means any time you work beyond these hours.

Normal working hours are the hours fixed by your employment contract.

Overtime pay

Employers do not have to pay workers for overtime. However, your average pay for the total hours you work must not fall below the [National Minimum Wage \(/your-right-to-minimum-wage\)](#).

Your [employment contract \(/employment-contracts-and-conditions\)](#) will usually include details of any overtime pay rates and how they're worked out.

Help and advice

[Contact Acas \(/pay-and-work-rights\)](#) for free and confidential advice on working hours.

2. Compulsory overtime

You only have to work overtime if your contract says so.

Even if it does, by law, you cannot usually be forced to work more than an average of [48 hours per week \(/maximum-weekly-working-hours\)](#). You can agree to work longer - but this agreement must be in writing and signed by you.

Unless your contract guarantees you overtime, your employer can stop you from working it.

However, your employer cannot [discriminate against anyone \(/discrimination-your-rights/discrimination-at-work\)](#), for example by stopping some employees from working overtime while letting others do so.

3. Part-time workers

Usually, [part-time workers \(/part-time-worker-rights\)](#) must not be treated less favourably than full-time staff.

You'll normally get paid at your hourly rate if you work longer hours than set out in your employment contract. Your employer will usually only pay overtime if at least one of the following applies:

- you work more than the normal working hours of full-time staff and full-time staff would get extra pay for working these hours
- you work at unsocial times (for example, late at night) and full-time staff would get more pay

Your contract will say if your right to paid overtime is different.

4. Time off and paid leave

Time off in lieu (TOIL)

Some employers give you time off instead of paying for overtime. This is known as 'time off in lieu'.

You agree the terms (for example, when it can be taken) with your employer.

